

OHS and BOSTA Data Dictionary / Glossary

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How to report out data using these dashboards.

Note 1: Accuracy and consistency are of the utmost importance in reporting data out for public consumption. Please use this dictionary to ensure the words you are using accurately describes the data you are pulling. Definitions may include specifications about what is included or excluded from a specific measure.

Note 2: For clearer storytelling about the impact of our work, please try to use concepts like contraventions addressed that focus on public impact rather than orders or field visits which center on our internal processes and inspector metrics.

Note 3: When looking at the dashboards and wanting to report out on just OHSA data or just BOSTA data, you will need to select either the OHSA button or the BOSTA button. Otherwise, both sets will be shown. Selecting either the OHSA button or the BOSTA button may provide additional information and different language depending on the dashboard.

FIRE

Field Inspection and Regulatory Enforcement. Name of the ministry's current OHS case management data system.

OHSA

The Occupational Health and Safety Act sets out the rights and duties of all parties in the workplace regarding occupational health and safety, as well as the procedures for dealing with workplace hazards and for enforcement as needed.

BOSTA

The Building Opportunities in the Skilled Trades Act provides the legislative framework to govern skilled trades and apprenticeship in Ontario.

Regulations

Regulations are a form of law, sometimes referred to as subordinate legislation, which define the application and enforcement of the legislation. Regulations are made under the authority of an Act, called an Enabling Act. Regulations are enacted by the body to whom the authority to make regulations has been delegated in the Enabling Act, such as the Governor in Council or a minister, etc.

Section

Every act and regulation are composed of numbered sections, cited as section (s) 1, 2, 3, etc.

Subsection

Many sections are further divided into two or more subsections, cited as subsection (ss) (1), (2), (3), etc.

Clause

Some sections and subsections contain clauses, cited as clause (cl) (a), (b), (c), etc., subclauses, cited as subclause (i), (ii), (iii), etc., paragraphs, cited as paragraph (A), (B), (C), etc., and subparagraphs, cited as subparagraph (i), (ii), (iii), etc.

Workplace

A workplace is considered any land, premises, physical location or thing at, upon, in or near which a worker works. An inspector may visit the same workplace multiple times.

Workplace Program (Primary Authority is used in the Fire Program)

The ministry's Occupational Health and Safety program with regulatory authority of the workplace sector. This is determined based on the sector that the workplace is categorized under.

Workplace Region

The region of Ontario the workplace belongs to. This is determined based on the postal code of the workplace.

Workplace Sector

The MOL sector the workplace belongs to as identified by the inspector. MOL sector is based on historical sectors as defined by the programs.

Staff Program

The Occupational Health and Safety program the inspector who created the case is assigned to.

Staff Region

The staff region is determined based on the Management Unit (District Office) that the inspector is assigned to based on the date of the field visit.

Staff Management Unit

Management units are administrative offices that inspectors are assigned to. The Contact Centre forwards events to individual management units. The staff management unit is based on the date of the field visit.

NAICS

North American Industry Classification System (NAICS 2017).

More details: [North American Industry Classification System \(NAICS\) Canada 2017 Version 3.0](#)

Open Data

The ministry uploads datasets for the public through the open data platform. e.g. [Occupational health and safety field visits, workplaces visited, and orders issued - Dataset - Ontario Data Catalogue](#)

Contravention

A contravention is a violation of the Occupational Health and Safety Act or its regulations or the Building Opportunities in the Skilled Trades Act or its regulations.

Compliance commitments and orders may be issued when a contravention is observed. Requirements are not issued for contraventions.

Contravener

An entity who has received an enforcement action. Please note workplaces parties that have requirements issued to them are technically not contraveners as they have not contravened the law, but for simplicity, are listed as “contraveners” in the inspector case management database.

Worksheet

Every field visit must include at least one worksheet per field visit. Worksheets are primarily used to identify the reason(s) why the field visit took place (e.g. reactive, proactive campaign, initiative, or blitz, consultation, etc.) but can also be used for different topics or hazards encountered during a field visit or for other tracking purposes. For all field visits (proactive and reactive), inspectors must mark the Worksheet that reflects the primary purpose of the field visit as the primary Worksheet. Inspectors may select additional Worksheets if they are appropriate for the field visit. These additional Worksheets will be considered secondary Worksheets.

Campaign/Initiative/Blitz

Campaigns/initiatives/blitzes are areas of focus for proactive work. Each year the OHSB programs and individual regions determine these areas of focus based on a variety of factors. Provincial campaigns typically run 6-12 months in duration, while Provincial initiatives run 1-4 months. To address regional differences in Ontario’s workplaces, each region may lead a number of regional initiatives to focus on workplace hazards that are commonly found in their geographical area. Blitzes is a term that has been used in the past to describe initiatives but is not currently being used.

Case

A case is a collection of related field visits, assignments, and orders. Like a file folder, work related to the same topic is filed in the system under one of three case types: Consultations, Inspections, and Investigations. Consultations and Inspections are Proactive cases, while Investigations are Reactive cases.

Cases are determined to be open/closed based on the individual inspector who conducted the field visit. If the inspector completes their case and believes no more information or work is needed, they will conclude and close the case.

▪ Proactive

Describes a case that was initiated by the inspector, and not a complaint, work refusal, injury, or fatality. There are two types of proactive cases: consultations and inspections.

- **Consultation**

A consultation occurs when a ministry inspector visits a workplace solely to provide information. It can be initiated by the ministry inspector or at the request of the workplace parties. Consultations are only done for OHSA cases.

- **Inspection**

Ministry inspectors conduct inspections to proactively monitor compliance with the OHSA and the BOSTA and their regulations. Inspections may result in a variety of enforcement actions but are not triggered by any incident at the workplace.

- **Reactive**

Describes a case or field visit that was initiated by an event reported to a ministry such as, a complaint, work refusal, injury, or fatality. Reactive cases are also called investigations.

- **Investigation**

An investigation occurs in response to an event (i.e., responding to complaints, critical injuries, fatalities, work refusals, etc.). The purpose is to investigate compliance with the OHSA and the BOSTA and their regulations in relation to the event.

Field Activity

Field Activity is the term used for reporting purposes that combines Field Visits, Field Visit Support Roles, Offsite Visits and Offsite Visit Support Roles.

Field Activity Types

- **Field Visit (FV)**

A field visit occurs when a ministry inspector visits a workplace to conduct an investigation, inspection, or consultation.

Field visit values do not include Field Visits in a Support Role, Offsite Visits, and Offsite Visits in a Support Role.

- **Field Visit Support Role (FVSR)**

When a professional services staff (such as a hygienist, engineer, ergonomist, infection prevention and control specialist, etc.) or another inspector accompanies an inspector on a field visit to provide professional support and/or expertise.

- **Offsite Visit (OV)**

Activities undertaken at a location other than the workplace during the course of an investigation (i.e., interview of individuals at their home, gathering evidence from police, doctor's offices, coroner, suppliers, etc.). Offsite visits are directly related to a particular case.

- **Offsite Visit Support Role (OVSR)**

Accompanying another inspector at an offsite (not at the related workplace) location during the course of an investigation (generally for the purposes of statement taking).

- **Field Visit Equivalent (FVE)**

For SPS staff only: 1 FVE is equal to 7.25 hours spent completing the following five defined SPS field visit equivalent activities: (1) Client Assistance, (2) External Committee, (3) Technical Committee, (4) Professional Report Writing, (5) Federal WHMIS

Events

Events are situations that have been reported to the ministry and are categorized as BOSTA, work refusals, complaints, injury/incidents, occupational illnesses, occurrences, disputes, reprisals, no nexus, or work stoppages. Some event types have subtypes.

Event Tags are a further categorization of events that is entered by the Call Centre when the event is called in. Events can have more than one Event Tag.

The following is a list of different Event Types and their subtypes.

- **BOSTA**

Events related to the Building Opportunities in the Skilled Trades Act (BOSTA).

- **Complaint – Unauthorized Work**

An alleged report of unauthorized compulsory trade work received by the ministry. The allegation may be in relation to a specific individual who is performing unauthorized compulsory trade work, or it may be in relation to a person who is engaging or employing unauthorized individuals to perform compulsory trade work.

- **Ratio Concern – ETD/STO**

If Skilled Trades Ontario, during their process to register an apprentice or verify journey person to apprentice ratio, requires assistance from an inspector to obtain information or confirm circumstances at a particular employer or sponsor's premise, they can submit a ratio concern complaint to the ministry for assistance.

- **Complaint**

Any expression of discontent or concern reported to the ministry regarding health and safety issues. For OHSA only.

There are number subtypes depending on the topic of the complaint.

- **Dispute**

A dispute is a type of event between workplace parties regarding assessments or control programs under designated substance regulations, involving the

establishment of a joint health and safety committee under section 9 of the OHSA, or between certified joint health and safety representatives. For OHSA only.

- **Injury/Incident**

There are several types on Injury/incidents listed below. For OHSA only.

- **Critical Injury**

Refer to O. Reg. 420/21 Notices and Reports Under Sections 51 to 53.1 of the Act – Fatalities, Critical Injuries, Occupational Illnesses and Other Incidents for a definition.

- **Death – Natural or Suicide**

Death at a workplace that, after investigation appears to be due to natural causes or suicide.

- **Fatal Injury**

An injury incident resulting in death to a worker.

- **Non-Critical Injury**

An incident that is neither a fatal nor critical injury but has been reported to the ministry.

- **Criminal Act – Fatality/Critical**

Death falls under the jurisdiction of the Criminal Code.

- **To Non-Worker – Fatality/Critical**

An injury that meets the above definition for fatality or critical injury but happens to a non-worker (e.g. such as a passerby on a construction site).

- **To Non-Worker – Non-Critical**

An injury that meets the above definition for non-critical injury but happens to a non-worker (e.g. such as a passerby on a construction site).

- **No Nexus**

This is an event not related to a workplace incident.

Subtypes include: Non Worker – Critical Injury; Non Worker – Fatality; Non Worker – Other Injury; Student – Critical Injury; Student – Other Injury; Worker – Critical Injury; Worker – Other Injury

- **Occupational Illness & Disease**

An occupational illness report to the ministry based on the definition set out in section 1 of the OHSA: “means a condition that results from exposure in a workplace to a physical, chemical or biological agent to the extent that the normal physiological mechanisms are affected and the health of the worker is impaired thereby and

includes an occupational disease for which a worker is entitled to benefits under the Workplace Safety and Insurance Act, 1997”. For OHSA only.

- **Occurrence**

An occurrence is an incident at a workplace not causing a critical injury or a fatality to a worker but was reported to the ministry. The reporting requirements in the OHSA may or may not apply to an occurrence. For OHSA only.

There are numerous subtypes depending on the type of occurrence.

- **Reprisal**

OHSA section 50 prohibits employers from dismissing, disciplining, or suspending a worker (or from threatening to do any of these things) and from penalizing, intimidating, or coercing a worker because the worker has: acted in compliance with, or sought the enforcement of the OHSA or its regulations, or given evidence in a proceeding in respect of the enforcement of the Act or its regulations, or at an inquest under the Coroners Act, R.S.O. 1990, chapter C37. For OHSA only.

- **Work Refusal**

When a worker believes their health and safety is endangered based on OHSA subsection 43(3). An event that is reported as a work refusal will stay as a work refusal in the inspector case management application even if the inspector deems OHSA subsection 43(3) did not apply to the situation. For OHSA only.

There are numerous subtypes depending on the topic of the work refusal.

- **Work Stoppage**

A work stoppage is a cessation of work by a constructor/employer/worker where the joint health and safety committee certified member(s) find “dangerous circumstances”. For OHSA only.

Enforcement Actions

Enforcement actions are the available options available to inspectors to address contraventions or require/demand information from workplace parties.

- **OHSA Enforcement Action Types**

Enforcement actions for occupational health and safety enforcement include compliance commitments, orders, requirements, stops works, and plans.

- **Compliance Commitments**

Compliance commitments are issued when an inspector identifies non-compliance with the OHSA or its regulations and makes an informed decision that compliance can be achieved voluntarily without the use of a statutory tool (i.e., order, Part I ticket or summons). Compliance commitments are only for administrative or low risk of harm contraventions. Respective health and safety

programs are responsible for determining which sections of the OHSA and its regulations a compliance commitment can be issued for. The inspector case management application will only allow for compliance commitments to be written for those identified sections.

- **Compliance Commitment – Forthwith**

The compliance commitment was satisfied at the time of the field visit prior to the inspector delivering the field visit report. The status of this type of compliance commitment is automatically updated to Commitment Complied With and no further action is required.

- **Compliance Commitment – Time**

The compliance commitment is to be satisfied through the workplace's internal responsibility system. The inspector is not required to put in a specific time nor follow-up on the compliance commitment.

- **Orders**

During the field visit, an inspector may issue orders to different workplace parties ("contraveners") to achieve compliance with the OHSA and its regulations when a contravention is found. The order describes which part of the act or regulation has been contravened and that the employer must reach compliance.

Types of Orders:

- **Forthwith Order**

An order related to a contravention of the OHSA or one of its regulations which was identified and was corrected at the time of the field visit, prior to the field visit report being delivered by the inspector. Compliance was verified at the time of inspection. The status of this type of order is automatically updated to Complied With and no further action is required.

- **Time Based Order**

An order issued for a contravention of the OHSA or one of its regulations which was identified and needs to be corrected by a specific date known as the compliance date.

- **Time Unknown Order**

An order issued for a contravention of the OHSA or one of its regulations which was identified and needs to be corrected. The date to be corrected was unknown at the time of issuing the order. A time unknown order will also have a related Stop Work Order or Plan Order.

- **Requirements (Req.)**

A Requirement is a legal direction issued under the OHSA to workplace parties requiring them to complete an action (e.g. a specific type of assessment) or provide information as specified. Requirements are not issued for contraventions.

Per Policy and Procedure 5.3.1 Requirements, inspectors can only issue requirements to OHSA clauses 54(1)(c), (f), (i), (k), (l), (m), (n), (o), and (p). Other sections of the OHSA may have had requirements issued under them in error but may still be captured as such in the inspector case management application.

OHSA clause 54(1)(l) is a stop work requirement and is categorized under stop works.

Types of Requirements:

- **Requirement Forthwith**

The requirement has been satisfied at the time of the field visit prior to the inspector delivering the field visit report. The status of this type of requirement is automatically updated to Complied With and no further action is required.

- **Requirement Time Based**

The requirement is to be satisfied by a specified date.

- **Requirement Time Unknown**

The requirement is to be satisfied by a date that is unknown at the time of issuance. A time unknown requirement can only be issued for OHSA clause 54(1)(k) and will have a related Stop Requirement (OHSA cl. 54(1)(l)) issued with it.

- **Plan A057-4**

A plan order is related to a contravention of the OHSA or one of its regulations which was identified, and the contravener must submit a plan, by a certain date, to the ministry outlining how they will correct the contravention. Plan orders are issued alongside a related time unknown order.

Plan orders are not included in the count of contraventions as doing so would double count this value.

- **Stop Works**

Stop works are issued alongside a related time unknown order or time unknown requirement (only clause 54(1)(k)) when the inspector finds there may be immediate risk of injury to a worker and orders or requires the work to discontinue or any equipment, machinery or device not be used.

Stop work types:

- **Requirement Stop**

When an OHSA clause 54(1)(k) requirement is issued, a stop use requirement under OHSA 54(1)(l) can be issued for the workplace to not use the equipment, machinery or device pending the testing as described in OHSA clause 54(1)(k).

- **Stop A057-6a: Compliance No Visit Required**

A stop work order is issued under OSHA clause 57(6)(a) where any place, equipment, machine, device, article or thing or any process or material shall not be used until the corresponding order is complied with. This is a related order that is written in alongside one or more time unknown orders.

- **Stop A057-6b: Compliance Re-Inspect**

A stop work order is used under OHSA clause 57(6)(b) where the work at the workplace as indicated in the order shall stop until the order to stop work is withdrawn or cancelled by an inspector after an inspection. This is a related order that is written in alongside one or more time unknown orders.

- **Stop A057-6c: Barrier**

A stop work order is used under OHSA clause 57(6)(c) for the workplace where the contravention exists be cleared of workers and isolated by barricades, fencing or any other means suitable to prevent access thereto by a worker until the danger or hazard to the health or safety of a worker is removed. This is a related order that is written in alongside one or more time unknown orders.

- **Stop A057-8: WHMIS**

A stop work order is used under OHSA clause 57(8) for the workplace to not use hazardous material nor use the thing that causes, emits or products the hazardous physical agent until the order is withdrawn or cancelled. This is a related order that is written in alongside one or more time unknown orders.

- **BOSTA Enforcement Action Types**

Enforcement actions within BOSTA include Compliance assistance, compliance orders, demands, refrains, and BNOCs.

- **Compliance Assistance**

A tool available to inspectors to address non-compliance under the BOSTA, instead of writing a compliance order or a refrain. Compliance assistance can be provided under BOSTA subsections 6, 7, 8, or 9. Compliance assistance does not generate a printable page or order for the recipient. It is intended to be used to document when an inspector provides assistance so that it can later be considered when an inspector is considering enforcement history to determine future enforcement actions, as per the compliance and enforcement framework.

- **Compliance Orders**

Compliance orders are specific to non-compliance of subsection 9 of the BOSTA. These orders address circumstances when an individual is not carrying their proof of authorization, as required under subsection 9 of the BOSTA. These orders are issued under subsection 9(1) for certificate of qualification holders, and under subsection 9(2) for apprentices.

Types of Compliance Orders:

- **Compliance Order – Forthwith**
The compliance order is complied with during the field visit and prior to the inspector delivering the report.
- **Compliance Order – Time**
The contravener has until the compliance date to comply with the compliance order.
- **Demands**
Formal requests for a document, record or other thing and are issued under subsection 20(9) of the BOSTA. A contravention does not have to exist for an inspector to issue a demand, they can be compared to a “requirement” under the OHSA. The workplace party has until the compliance date to comply with the demand.
- **Refrain**
Refrain orders under the BOSTA behave like “forthwith” orders and are issued by inspectors under subsections 6 and 7 of the BOSTA, when an unauthorized individual is performing compulsory trade work. Refrain orders are similar to “stop work” orders under the OHSA, however they do not have a compliance date or specific instructions to become compliant. Refrains under subsection 6 advise the unauthorized individual that they cannot perform compulsory trade work unless they are authorized to do so. Refrains under subsection 7 advise persons engaging or employing the individual that they cannot employ or engage someone to perform compulsory trade work if they are not authorized to do so.
- **BOSTA Notices of Contravention (BNOCs)**
BNOCs or BOSTA notices of contravention are served under subsection 27(1) of the BOSTA and contain an administrative monetary penalty (AMP). BNOCs are an escalation of an order to refrain and **are always accompanied by an order to refrain within the same field visit report**. BNOCs can be compared to a companion order under the OHSA, as the order to refrain contains the contravention, the BNOC references that contravention and the BNOC is the escalated enforcement action which includes penalty.

Enforcement Actions Status

- **Abandoned**
This refers to an enforcement action which cannot ever be complied with due to extenuating circumstances such as out of business, moved out of province, equipment sold or abandoned, etc. This applies for both OHSA and BOSTA.
- **Appeal in Progress**

This term refers to an enforcement action which is being appealed under section 61 of the OHSA. This applies for OHSA (currently under the BOSTA BNOCs can be appealed but this status will not be available in the future as BNOCs will be treated as a “forthwith” enforcement action.)

- **Commitment**

This refers to a compliance commitment - time which has been issued but for which compliance has not been confirmed. This applies only for OHSA.

- **Commitment Complied With**

This refers to a compliance commitment for which an inspector has deemed the contravention has been addressed. An inspector does not need to confirm compliance of a compliance commitment. This applies only for OHSA.

- **Complied With**

This term refers to an order, requirement, plan, refrain, compliance order, or demand for which an inspector has deemed the contravention to have been addressed. This applies for OHSA and BOSTA.

- **In-Process**

The contravener or workplace party is in the process of complying with an order, requirement, plan, stop work, or demand. The compliance date has not yet passed. This applies for OHSA and BOSTA.

- **Not Applicable**

This status is used for Compliance Assistance that has been provided during a BOSTA field visit.

- **Not Complied With**

The contravener or workplace party has not complied with an order, requirement, plan, demand, or compliance order after the compliance date has passed. There is a 3-day grace period after the compliance date. Not Complied With status is shown when there has not been compliance after this 3-day period. This applies to OHSA and BOSTA.

- **Outstanding**

The contravener or workplace party has not complied with the order, requirement, plan, demand, or compliance order after the compliance date. There is a 3-day grace period after the compliance date. Outstanding status is shown during this 3-day period. This applies for OHSA and BOSTA.

- **Rescinded**

This refers to an order, commitment, requirement, plan, stop work, BNOC, compliance order, refrain or demand that was deemed to have been issued incorrectly and was retracted.

Rescinded enforcement actions are no longer included in the dashboard and can be requested from DARB.

- **Withdrawn/Cancelled**

This refers to a stop work order or stop work requirement that has been lifted. A stop work is "in process" until it is withdrawn/cancelled.

Total Enforcement Actions

For OHS: This is the value of all the enforcement actions issued by inspectors to workplace parties. Total Enforcement Actions = compliance commitments + orders + requirements + plans + stop works

For BOSTA: This is the value of all the enforcement actions issued by inspectors to individuals and those engaging them. Total Enforcement Actions = compliance orders + demand + BNOC + refrain + compliance assist

Enforcement Actions/Workplace

This is the value of the total number of enforcement actions per workplace visited.

Enforcement Actions/Field Visit

This is the value of the total number of enforcement actions per field visit.

Contraventions

This term is used to describe the number of contraventions found by inspectors and an enforcement action was used.

For OHS: Contraventions = compliance commitments + orders

For BOSTA: Contraventions = compliance assistance + compliance orders + refrains

Contraventions/Workplace

This is the value of the total number of contraventions found per workplace visited.

Contraventions/Field Visit

This is the value of the total number of contraventions found per field visit.

% Orders Complied With (OHS)

This value is the number of orders (forthwith, time based, and time unknown) that have been complied with divided by the total number of orders (forthwith, time based, and time unknown) that have been issued within a certain time period. Compliance

commitments, rescinded orders, plans, stop works, and requirements are not included in this calculation.

% Orders Complied With (BOSTA)

This value is the number of compliance orders (forthwith and time based), and refrains that have been complied with divided by the total number of compliance orders (forthwith and time based), and refrains that have been issued within a certain time period. Rescinded enforcement actions, demands, compliance assistance, and BNOCs are not included in this calculation.

% Not Complied With (OHS+BOSTA)

This metric includes time-based orders, requirements and PLAN A057-4 for OHS and time-based compliance orders and demands for BOSTA with the status “Not complied with” in the numerator and all time based orders, requirements, PLAN A057-4; compliance orders, and demands in the denominator. This measure is only included in the RMR. Note: % Not complied with plus % orders complied with will not equal 100%.